

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

JOINT STATUS REPORT

Pursuant to 46 C.F.R. §502.141(h), and the July 1, 2025 Scheduling Order (“Order”), Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (collectively, “Respondents” or “OOCL”), (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.

Discovery Schedule.

On July 1, 2025, Judge Ambrow issued the Order requiring the Parties to file a Joint Status Report on the first business day of every month and to file a revised discovery schedule with the August 1, 2025 Joint Status Report (“JSR2”) which proposes to complete discovery within 150

days, commencing on July 1, 2025 (Doc. 61) and closing on December 1, 2025¹. The Parties have discussed a timeline for the completion of discovery in this matter and, in compliance with the Order, propose the dates outlined below (with areas of disagreement noted):

Event	Deadline
Begin to Exchange Requests for Production of Documents, Requests for Admissions, and Interrogatories	July 1, 2025
Joint Status Report 3	September 2, 2025
Complete Document Productions	September 30, 2025 ²
Joint Status Report 4	October 1, 2025
Complete Fact Depositions	October 31, 2025
Joint Status Report 5	November 3, 2025
Service of Expert Reports by Complainant	November (7) 17, 2025 ³
Joint Status Report 6	December 1, 2025
Service of Rebuttal Expert Reports by Respondent	December 1, 2025
Close of Expert Discovery	December 1, 2025
Complainant's brief, proposed findings of fact, and appendix	January 9, 2026

¹ The 150-day discovery period expires November 27, 2025, which is a holiday. The deadline is thus extended until December 1, 2025, the following business day. (46 C.F.R. § 502.101).

² The Parties note that additional time is very likely to be necessary in light of the fact-specific nature of the proceeding and the extremely large amount of information and data that needs to be collected, processed, indexed, reviewed, produced, and digested prior to depositions. However, the Parties do not intend the deadlines to supersede the requirement to respond to interrogatories and serve objections to requests for production of documents within thirty (30) days of the service of same.

³ The date without parentheses is Complainant's proposed date. Respondents believe two weeks is insufficient time for preparation and submission of a rebuttal expert report. Respondent notes that nothing prevents Complainant's expert – who is not even identified -- from starting work at any time, whereas Respondent's expert – who may not even be known until Complainant's expert is identified -- cannot make a meaningful start until Complainant's expert report is served. Accordingly, Respondents would advance the November 17 date to November 7 so that Respondents have a more reasonable time to prepare the rebuttal report.

Respondent's brief, responses to proposed findings of fact, proposed findings of fact, and appendix	February 17, 2026
Complainant's reply brief and responses to proposed findings of fact	March 3, 2026

The Parties respectfully reiterate the concerns expressed in their June 26, 2025 Joint Status Report (Doc. 60, "JSR1") that requiring the completion of discovery within the 150-day limit prescribed by the FMC Rules does not provide a realistic timeline in light of the work which the Parties must complete and the complex nature of the present matter. This issue has been recognized by Presiding Officers assigned to other cases filed against ocean carriers by SEA, and amended schedules allowing discovery to extend past the 150-day limit have been granted. FMC Docket No. 23-01, *Samsung Electronics America, Inc. v. SM Line* (Doc. 21); FMC Docket No. 22-30, *Samsung Electronics America, Inc. v. ZIM* (Doc. 31); FMC Docket No. 24-16, *Samsung Electronics America, Inc. v. COSCO* (Doc. 54); Docket No. 24-17, *Samsung Electronics America, Inc., v. Orient Overseas Container Line, Ltd.* (Doc. 61); FMC Docket No. 24-23, *Samsung Electronics America v. HMM*. (Doc. 34). This case includes a claim for reparations of \$12.5 million for more than 4,400 demurrage and detention charges, plus related damages and, as described below, the amount of data which must be marshaled, reviewed and produced and the fact witnesses who must be deposed by each Party followed by expert discovery, cannot realistically be completed within 150 days. Accordingly, while the Parties have submitted a schedule in accordance with the Presiding Officer's directive, they do not believe that the discovery required in this case can be realistically completed within the constricted 150-day limit.

As directed by the Order, the Parties each report on their respective discovery processes:

Claimant, Samsung Electronics America, Inc.

1. Discovery:

SEA received OOCL's discovery requests on July 2, 2025 and has been diligently and actively compiling the necessary documents and data to respond to OOCL's requests. SEA served its interrogatories and requests for production on OOCL on July 24, 2025. In addition, SEA has been preparing requests for admissions and a proposed list of stipulations to narrow the focus of the litigation and the legal and factual points of contention.

With respect to the compilation of information, information from 20 custodians has been captured, with no further custodians remaining to be searched. The volume of data, approximately 5 terabytes (TB) of documents and data, is still in the process of being reduced and indexed to more accurately reflect the relevant period at issue (January 1, 2021 through December 31, 2022) as well as the specific parties involved. A small percentage of data has been reviewed to date, but that process is active and ongoing. The volume of data necessary to prove the unjust and unreasonable nature of the over 4,400 charges at issue and separating out the relevant containers and their associated charges is the primary obstacle in reviewing and producing responsive documents and information. With respect to depositions, SEA has previously targeted an estimated 19 depositions of both fact and corporate OOCL witnesses based on OOCL's disclosures, though this number may be amended in light of future documentary analysis, anticipated declarations, admissions, and joint factual stipulations.

2. Mediation

In light of the costs and burden of the necessary discovery, SEA believes that mediation or a settlement judge would be useful in this matter. SEA proposes that the Presiding Officer

should: (1) order a preliminary conference with CADRS in accordance with 46 C.F.R. § 502.64, which upon information and belief, OOCL has not yet done, in defiance of the Initial Order (Doc. 05); and (2) order the parties to attend a conference for the settlement or simplification of the issues pursuant to Rules 502.25(b)(2), 502.411(b), and 5 U.S.C. Section 556(c)(8). Alternatively, SEA proposes that the Presiding Officer appoint a settlement judge pursuant to Rule 502.75(f) in an effort to reach a resolution of this matter in a more efficient manner.

3. OOCL's Counterclaim

Earlier this week, on July 30, 2025, the Commission denied OOCL's April 16, 2025 Appeal and affirmed Judge Chintella's March 31, 2025 dismissal of OOCL's counterclaim against SEA. However, the Commission remanded the matter to permit OOCL to amend its pleading despite the lack of what the Commission saw as conduct that would present a plausible claim under section 41102(a). OOCL has advised that it intends to file an Amended Counterclaim in accordance with the Commission's Order (Doc. 66). SEA requests that the Presiding Officer update the schedule of this matter to accommodate the Amended Counterclaim and the briefing that is anticipated to be associated with it in the next Scheduling Order.

Additionally, in light of the Presiding Officer's desire to formulate a working schedule for this proceeding, OOCL's intention to file an amended counterclaim provides further justification to order the parties to attend a conference for the settlement or simplification of the issues pursuant to Rules 502.25(b)(2), 502.411(b), and 5 U.S.C. Section 556(c)(8), as proposed above.

Respondents, Orient Overseas Container Line Limited and OOCL (Europe) Limited

1. Discovery:

In accordance with the Order's directive that discovery begin on July 1, 2025, OOCL served its First Set of Interrogatories and Requests for Production of Documents upon SEA on July 2, 2025.

SEA served its first discovery requests on OOCL on July 24, 2025. In anticipation of the discovery it would receive, OOCL proactively arranged for the transfer of more than 3.1 TB of data to an eDiscovery server space where it can be downloaded into an eDiscovery software platform, analyzed for relevance and ultimately reviewed by counsel for responsiveness prior to production. The data consists of materials from twenty OOCL custodians, in addition to materials that were obtained through manual searches by OOCL. OOCL contemplates that no additional custodians remain to be searched at this time, however additional manual searches may be necessary to respond to specific SEA's discovery requests.

As SEA's discovery requests were received within the last seven days, OOCL's eDiscovery vendor has just begun its analysis of the downloaded data for potentially responsive material but expects it will have identified and produced a substantial volume of documents on a rolling basis by September 2, 2025, the date on which the next JSR is due.

At this time, OOCL estimates that it will depose five SEA witnesses. However, OOCL may modify this figure after it has received SEA's discovery responses and has analyzed documents responsive to OOCL's discovery requests, at which time it can more accurately identify the knowledgeable witnesses it will be required to depose.

OOCL anticipates that depositions of witnesses employed by the third-party Respondent, SEC, may be necessary and will have clarity on that issue after SEA has complied with OOCL's discovery requests.

2. Third Party Complaint

On July 10, 2025, an Order was issued denying the motion of Third-Party Respondent, Samsung Electronics Company, Ltd. to dismiss the Third-Party Complaint, and which granted OOCL leave to serve the Third-Party Complaint pursuant to the requirements of the Hague Convention. In accordance with its requirements, OOCL initiated service on SEC via the Hague Convention on July 21, 2025 at which time OOCL transmitted translated copies of the Third-Party Complaint and related documents to the appropriate Korean authority. A tracking number was provided at the time the materials were shipped, however the status of the delivery is not available from the US Postal Service in light of its dispatch to Korea.

3. Counterclaim

On July 30, 2025, the Commission issued an Order Affirming Dismissal of OOCL's Counterclaim against SEA but granted leave to SEA to file an amended Counterclaim. (Doc. 66). OOCL will be timely filing an Amended Counterclaim in accordance with the Commission's Order and requests that the Presiding Officer provide a schedule for same in the next Scheduling Order.

4. Mediation

OOCL does not believe mediation would be productive at this time and has advised SEA's counsel that it will re-visit that issue after substantial documentary discovery has been completed.

Dated: August 1, 2025

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ **Peter F. Black**

Peter F. Black
H. Allen Black
Imran O. Shaukat
1215 19th Street NW,
Washington, D.C. 20036
Telephone: (202) 987-4100
Email: pblack@millsblack.com
Email: hallenblack@millsblack.com
Email: ishaukat@millsblack.com

*Counsel to Complainant, Samsung
Electronics America, Inc.*

COZEN O'CONNOR, P.C.

By: /s/ **Christopher Raleigh**

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Rachel Schwartz
2001 M Street Northwest, Floor 5
Washington, DC 20036
Telephone: 202-463-2507
Facsimile: 202-640-5912
Email: wrohde@cozen.com
Email: craleigh@cozen.com
Email: ksobotta@cozen.com

Email: rschwartz@cozen.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

**JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC**

Email: EJeffrey@JeffreyFenneman.com

Email: RFenneman@JeffreyFenneman.com

Email: KMassey@JeffreyFenneman.com

Email: NWebb@JeffreyFenneman.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

By: /s/ Rebecca A. Fenneman

Eric C. Jeffrey

Rebecca A. Fenneman

Kaya C. Massey

Nicholas L. Webb

700 12th Street, NW Suite 700

Washington, DC 20005

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents
 - a. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - b. Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
 - c. Kaya C. Massey
KMassey@JeffreyFenneman.com
 - d. Nicholas L. Webb
NWebb@JeffreyFenneman.com
4. Mills Black LLP
Counsel for Complainant
 - a. Allen Black
hallenblack@millsblack.com

- b. Peter F. Black
pblack@millsblack.com
 - c. Imran O. Shaukat
ishaukat@millsblack.com
5. Hohenstein & Parkinson, LLP
Specially Appearing Counsel for Third-Party Respondent
- a. James H. Hohenstein
jim.hohenstein@hplawnyc.com

Dated: August 1, 2025

By: /s/Wayne R. Rohde